

Riverwood Trail Homeowners' Association

Solar Energy System Design Guidelines

Official Policy Governing Solar Energy System Installations in the Riverwood Trails Community

Adopted by the Board of Trustees and Design Review Board **Date:** _____

Legal Authority Notice

These guidelines are established pursuant to **Ohio Senate Bill 61**, which restricts homeowners associations from unreasonably prohibiting solar energy systems on residential properties. No provision of these guidelines shall be applied in a manner that effectively prohibits a solar installation or renders one financially impractical.

1. Purpose and Authority

These Solar Energy System Design Guidelines ("Guidelines") are established by the Riverwood Trails Homeowners Association ("Association" or "HOA") pursuant to **Ohio Senate Bill 61**, which restricts homeowners associations from unreasonably prohibiting solar energy systems on residential properties. The Association adopts these Guidelines to provide a clear, fair, and legally compliant process for the review and approval of solar energy system installations within the Riverwood Trails community.

These Guidelines are intended to balance the legitimate interests of the Association in maintaining community aesthetics and property values with the rights of homeowners to install solar energy systems as protected under Ohio law. These Guidelines supersede any conflicting provisions in the Association's prior governing documents, including the Declaration of Covenants, Conditions, and Restrictions and any Design or Architectural Standards, to the extent required by applicable Ohio law.

2. Applicability

These Guidelines apply to all homeowners within the Riverwood Trails Homeowners' Association who seek to install, replace, or materially modify a solar energy system on their residential property. Covered systems include, but are not limited to:

- Rooftop solar photovoltaic (PV) panels;
- Ground-mounted solar panels, where permitted by applicable local zoning regulations; and
- Solar thermal systems designed for domestic water heating or space heating applications.

These Guidelines apply to all **new installations** and to any **material modifications** to previously approved systems. Routine maintenance, panel-for-panel replacements with identical equipment, and minor repairs do not require a new application unless they result in a change in system appearance, placement, or size.

3. Pre-Application Guidance

Prior to submitting a formal application to the Design Review Board ("DRB"), homeowners are strongly encouraged to take the following preparatory steps to facilitate a smooth review process:

- Contact a **licensed solar contractor** for a comprehensive site assessment, including roof condition evaluation, shading analysis, and system sizing recommendations;
- Review all applicable **local building permit requirements** for the relevant municipal jurisdiction (Warren County Ohio, Deerfield Township or any other applicable authority having jurisdiction);
- Read these Guidelines in their entirety prior to system design and contractor selection; and
- Contact the **HOA Board of Trustees** and **Design Review Board** with any preliminary questions regarding these Guidelines or the application process.

Tip for Homeowners

Early consultation with the HOA Trustees and Design Review Board before finalizing a contractor agreement can help avoid design conflicts and reduce the likelihood of revision requests during the formal review process.

4. Application Requirements

Homeowners must submit a complete Design Review Application package to the Design Review Board/Architectural Review Committee prior to commencing any installation. An application shall be deemed **complete** only when all of the following materials have been received:

1. Completed **Design Review Application Form** (available at www.riverwoodtrails.com or from the HOA board);
2. A **site plan or plot map** showing the proposed placement of panels on the roof surface or lot, including dimensions and orientation;
3. **Product specification sheets** for all solar panels and inverter(s) to be installed;
4. Panel **dimensions, color, and finish details**, including frame color and any visible mounting hardware;
5. Name, license number, and current **certificate of insurance** for the installing contractor;
6. A **signed acknowledgment** by the homeowner that the installation will comply with all applicable local building codes, permit requirements, and these Guidelines; and
7. Any applicable **HOA application fee**, as set by the Board of Trustees from time to time.

Incomplete applications will not be reviewed. The DRB will notify the homeowner in writing of any deficiencies within fifteen (15) business days of receipt.

5. Design Standards

All solar energy systems installed within Riverwood Trails must conform to the following solar design standards. These standards are intended to be reasonable and are not intended to prohibit, render impractical, or unreasonably increase the cost of a solar installation.

5.1 Placement

- Panels are **preferred on rear-facing or side-facing roof slopes** when technically feasible and when such placement does not significantly reduce system efficiency. For purposes of these Guidelines, a "significant reduction" is defined as a reduction greater than **10% of projected annual energy output**.
- **Front-facing installations** are permitted only when rear or side placement is not technically feasible, or when rear or side placement would reduce system efficiency by more than 10% as documented by the homeowner's licensed solar contractor.
- If rear or side placement is not feasible, the homeowner must provide a **written statement from their licensed solar contractor** explaining the technical or efficiency-based basis for front-facing panel placement. This documentation must be submitted as part of the application package.

5.2 Appearance

- All panels must be **low-profile and flush-mounted** to the roofline to the extent structurally possible and consistent with manufacturer specifications and building code requirements.
- Panel frames and visible mounting hardware should be **black, dark gray, or color-matched to the roof surface**, where such options are commercially available at standard market cost.
- **Reflective or bright metallic finishes** on frames or racking components are discouraged and subject to DRB review.
- Exterior **wiring, conduit, and electrical components** on visible building surfaces must be concealed within conduit or color-matched to the adjacent surface to the extent reasonably practicable.

5.3 Roof Condition

- Homeowners are solely responsible for ensuring that the roof is in adequate structural condition prior to installation.
- The DRB reserves the right to request a **roofing condition assessment report** from a licensed roofing contractor if the roof appears to be in visibly deteriorated condition at the time of application review.

5.4 Ground-Mounted Systems

- Ground-mounted solar systems are subject to **all applicable local zoning approvals** in addition to DRB review under these Guidelines.
- Ground-mounted systems must be located in **rear or side yard areas only** and may not be placed in the front yard of any residential lot.
- The height of any ground-mounted system must not exceed the **eave line of the principal structure** on the lot.
- Ground-mounted systems **visible from a public street** must be screened from view using landscaping, fencing, or other approved screening measures where reasonably feasible.
- Ground-mounted systems require a **separate DRB application** and approval, in addition to satisfying all other requirements set forth in these Guidelines.

Design Standard	Requirement	Exception / Notes
Preferred Placement	Rear- or side-facing slopes	Front-facing permitted with contractor documentation if rear/side reduces efficiency >10%
Mounting Style	Low-profile, flush to roofline	Per manufacturer specs and structural requirements
Frame / Hardware Color	Black, dark gray, or roof-matched	Where commercially available at standard cost
Exterior Conduit	Concealed or color-matched	To the extent reasonably practicable
Ground-Mounted Height	Not to exceed eave line	Rear/side yard only; screening required if street-visible

6. Review Process and Timeline

The DRB is committed to timely review of all solar installation applications. The following timelines govern the review process and are consistent with applicable Ohio law:

- The DRB will **acknowledge receipt** of a complete application in writing within **10 business days** of submission.
- The DRB will render a written **decision** (approval, conditional approval, or denial) as soon as possible, but within **45 calendar days** of receiving a complete application.
- If the DRB determines that **additional information** is required, it will notify the homeowner in writing within **15 business days** of receipt. The 45-day review period shall **restart** upon the DRB's receipt of the requested supplemental information.
- In the event the DRB **fails to render a decision** within the required 45-day period, the application shall be deemed **approved by operation of Ohio law**, and the homeowner may proceed with the installation as submitted.
- All DRB decisions—approvals, conditional approvals, and denials—will be communicated to the homeowner in **writing**.

7. Grounds for Denial

The DRB may deny a solar installation application **only** on one or more of the following grounds:

- a. The proposed installation does not comply with one or more provisions of these Guidelines in a manner that is reasonable and **does not significantly increase costs or decrease efficiency** of the solar energy system;
- b. The application is **incomplete** (provided, however, that the homeowner shall be given a written notice of deficiency and a reasonable opportunity to supplement the application); or

- C. The proposed installation poses a **documented structural or safety risk** to the home, adjacent properties, or community infrastructure, as supported by a written assessment from a qualified professional.



Important Limitation on Denial

All denial letters must include a written explanation of the specific reason(s) for denial and must reference the applicable provision(s) of these Guidelines. **The HOA may not deny an application solely on aesthetic grounds** if doing so would effectively prohibit a functional solar installation or render it financially impractical, consistent with Ohio SB 61.

8. Post-Approval Requirements

Following DRB approval, homeowners must comply with all the following post-approval obligations prior to and during installation:

- Homeowner must obtain all required local building permits from the applicable municipal jurisdiction(s) prior to commencement of installation;
- Installation must be performed by a licensed contractor whose credentials are consistent with those provided in the approved application;
- Homeowner must notify the HOA Trustees and DRB in writing upon completion of the installation;
- The completed installation must materially conform to the approved plans and specifications. Any material deviation from the approved design requires submission and approval of a new DRB application prior to implementation; and
- Homeowner is solely responsible for the ongoing maintenance of the solar energy system and for any roof repairs or structural remediation necessitated by the installation, during the homeowner's ownership of the property.

9. Modifications and Removal

- **Material modifications** to an DRB-approved solar energy system—including changes in panel quantity, placement, dimensions, equipment models, or mounting system—require a new DRB application and approval prior to implementation.
- Upon the **sale or transfer** of a property, the purchasing or receiving homeowner assumes full responsibility for the existing solar energy system, including maintenance obligations and compliance with these Guidelines.
- In the event a solar energy system is **removed** from a property, the homeowner is responsible for restoring the roof and any affected exterior surfaces to their prior condition, including patching all penetrations and repairing any cosmetic damage, within sixty (60) days of system removal.

10. Appeals

Homeowners who receive a DRB denial decision have the right to appeal that decision to the full Board of Trustees of the Association. The following procedures govern the appeals process:

- A homeowner must submit a **written notice of appeal** to the HOA Board of Trustees within **30 calendar days** of the date of the denial letter;
- The Board of Trustees will review the appeal at the **next regularly scheduled Board meeting**, or within **60 calendar days** of receipt of the appeal, whichever occurs first;
- The homeowner will be provided written notice of the date, time, and location of the Board meeting at which the appeal will be considered and shall be afforded an opportunity to present their position; and
- The **Board's decision on appeal is final** as a matter of Association process, subject to any rights available to the homeowner under applicable Ohio law, including the right to pursue available legal remedies.

11. Disclaimer and Legal Compliance

These Guidelines are intended to comply in all respects with **Ohio Senate Bill 61** and all other applicable federal, state, and local laws governing solar energy systems and homeowners associations. The Association shall administer and enforce these Guidelines in a manner consistent with applicable law.

No provision of these Guidelines shall be interpreted or applied in a manner that:

- Effectively **prohibits** a homeowner from installing a functional solar energy system on their residential property;
- Imposes **costs or conditions** that render a solar installation financially impractical; or
- Discriminates against solar energy systems in a manner not permitted by Ohio law.

The Association reserves the right to **amend these Guidelines** from time to time by action of the Board of Trustees, consistent with the Association's governing documents and applicable law. Amendments will be communicated to all homeowners and will be effective upon adoption by the Board, unless otherwise specified.

These Guidelines do not constitute legal advice. Homeowners are encouraged to consult with a qualified attorney regarding their individual rights and obligations under Ohio law.

12. Adoption and Effective Date

These Solar Energy System Design Guidelines are hereby adopted by the Board of Trustees of the Riverwood Trails Homeowners Association as the official policy of the Association governing solar energy system installations within the Riverwood Trails community.

Item	Detail
Adopting Body	Riverwood Trails HOA Board of Trustees
Date of Adoption	_____, 2026
Effective Date	Immediately upon adoption by the Board of Trustees
Supersedes	All prior solar-related provisions in Association governing documents to the extent required by Ohio law

By signing below, the undersigned members of the Board of Trustees of the Riverwood Trails Homeowners Association certify that these Guidelines were duly adopted at a properly noticed meeting of the Board of Trustees.

Board President

Signature _____

Date: _____

Printed Name: _____

Board Secretary

Signature _____

Date: _____

Printed Name: _____

Board Treasurer (Attestation)

Signature _____

Date: _____

Printed Name: _____



HOA Manager Acknowledgment (if applicable)

Community Manager Name: _____

Management Company: _____

Date Filed with Association Records: _____